



U.S. Department
of Transportation

Research and
Special Programs
Administration

SEP 1 1998

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400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11651
(THIRD REVISION)

EXPIRATION DATE: JULY 31, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Bayer Corporation
Pittsburgh, PA
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation, in commerce, of non-DOT Specification sift-proof closed motor vehicles containing a Division 4.2 material. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.241(b) in that a non-authorized packaging is utilized.
5. BASIS. This exemption is based on the application of Bayer Corporation dated July 24, 1998, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification number	Packing Group
Self-heating solid, organic, n.o.s.	4.2	UN 3088	III

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7. PACKAGING(S) and SAFETY CONTROL MEASURES:

PACKAGING - Packagings prescribed are non-DOT specification hopper-type aluminum sift-proof closed motor vehicles of the type known as dry bulk trailers. Units must conform to the Heil Company's Super Jet Model 1585.

A sketch and specifications for this dry bulk vehicle are on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). The maximum operating pressure of this dry bulk vessel is 15 psi.

8. SPECIAL PROVISIONS.

- a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.
- b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
- c. Each cargo tank must be marked "DOT-E 11651" in letters and numerals at least two inches high on a contrasting background on each side.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

10. MODAL REQUIREMENTS. None as a requirement of this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

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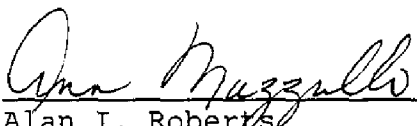
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

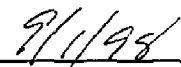
Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipment made under the terms of this exemption.

Issued at Washington, D.C.:

for 
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety


(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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